

Case :- WRIT - C No. - 1548 of 2021

Petitioner :- Urmila Devi

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Aditya Kumar Tripathi

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel appearing on behalf of respondent no. 2 and learned Standing Counsel appearing on behalf of respondent nos. 1 and 3.

This writ petition has been filed seeking following reliefs:-

" a. issue a writ, order or direction in the nature of Certiorari to quash the Recovery Citation dated 05.11.2019 of Rupees 1,48,361/- issued by respondent no. 2.

b. issue a writ, order or direction in the nature of Mandamus commanding and directing the respondent authority to restore the electricity supply of the petitioner."

At the very outset, learned counsel appearing for respondent no. 2 submits that in this case, the petitioner is disputing the accuracy of the amount of bill generated by Electricity Department for which, he may approach before respondent no. 2 under Clause 6.5 of the U.P. Electricity Supply Code, 2005. It has further been contended that the petitioner had already approached to Consumer Grievance Redressal Forum for the same relief against which the objection has also been filed. The application, before the Consumer Forum, is still pending while the respondent no. 4 had issued the Recovery Citation dated 5.11.2019.

This fact has not been disputed by the learned counsel for the petitioner.

Considering the facts and circumstances of the case, but without entering into the merits of the case, this writ petition is ***disposed of*** directing the petitioner to move a fresh representation before respondent no.2 under Clause 6.5 of the U.P. Electricity Supply Code, 2005 within two weeks' from today ventilating her grievances and in case, such representation is moved, the same shall be considered and decided by respondent no.2 who shall

pass an appropriate, reasoned and speaking order, as expeditiously as possible, preferably within a period of three weeks' from the date of receipt of a copy of this order.

For a period of six weeks or till any final decision is taken on the representation of the petitioner, whichever is earlier, no coercive action shall be taken against her.

Order Date :- 22.1.2021
Saurabh